

D. White

Date: July 18, 2013

Risk Review

By: BS
Date: 7-16-13

LEASE AGREEMENT BETWEEN THE
WYOMING DEPARTMENT OF ENVIRONMENTAL QUALITY
AND THE CITY OF CHEYENNE

GROUND LEASE

This Ground Lease ("Lease") is made and entered into this ____ day of _____, 2013 by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming, 82001, ("Lessor") and the Wyoming Department of Environmental Quality, having its principal office in the Herschler Building, 122 East 25th Street, St. 2-E, Cheyenne, Wyoming, 82002 ("Lessee"), collectively referred to herein as "Parties."

RECITALS

1. Lessor is the owner of certain real property, generally described and depicted on the FINAL PLAT, NORTH CHEYENNE COMMUNITY PARK, AN ADDITION TO THE CITY OF CHEYENNE, which is situated in the North One-Half of Section 21, and the East One-Half of Section 16, in Township 14 North, Range 66 West, 6th P.M., Laramie County, Wyoming, and which is comprised of approximately 173.48 acres, more or less, which is currently being used by the Lessor for public outdoor recreational activities.

2. The parties desire to execute this Lease for the purpose of granting Lessee the right to use and occupy an area of land which is One Hundred Feet in length and One Hundred Feet in width in the approximate location depicted on Attachment A, appended to this Lease, to be used by Lessee solely for the purpose of installing and using ambient air quality monitor(s) and such other equipment as necessary to carry out the governmental function of air quality monitoring. The area subject to this Lease is hereinafter referred to as "Premises."

3. The parties desire to enter into this Lease for the purpose of defining their rights, duties and liabilities relating to the Premises. In consideration of the matters described above, and of the mutual benefits and obligations set forth in this Lease, the parties agree as follows below.

4. Lessor, by this Lease, grants to Lessee the right to use the Premises for the sole and exclusive purposes of conducting air quality monitoring, subject to the terms and conditions of this Lease.

5. The term of this Lease shall commence on the last date that authorized representatives of Lessor and Lessee have executed this Lease ("Effective Date"), as provided herein, and shall continue thereafter for a term of ninety-six (96) months, unless sooner terminated in accordance with the provisions hereof.

6. This Lease is not valid and shall not become effective until it is signed by an authorized representative of the Wyoming Department of Environmental Quality, an authorized

representative of the Wyoming Department of Administration and Information, an authorized representative of the Office of the Attorney General of Wyoming, and if required by Wyo. Stat. § 9-2-1016(b)(iv) by the Governor or his designee. The term of this Lease shall expire ninety-six (96) months from the Effective Date, unless the term of this Lease is extended pursuant to the mutual agreement of the Parties, as reduced to writing, and signed by the authorized representatives of the Parties with the same formalities as the execution of this Lease.

7. The Lessee shall pay rent to Lessor in the amount of Two-Thousand Five Hundred Dollars (\$2,500.00) per year. The first annual rent payment shall be due within sixty (60) days after the Effective Date of this Lease and within sixty (60) days after each anniversary of the Effective Date during the term of this Lease. All rent payments shall be delivered to the City Treasurer at the address stated above in this Lease. The total amount of rent during the term of this Lease shall not exceed Twenty Thousand Dollars (\$20,000.00).

8. So long as Lessee is not in default with regard to any terms and conditions of the Lease, the Lessee shall have the right to use the Premises for the purposes described herein and Lessor shall not conduct any activity on the Premises which would unreasonably interfere with the use of the Premises by Lessee.

9. In the event this Lease, or the payment of rent by Lessee pursuant to this Lease, causes the Premises, or any adjacent property owned by Lessor, to be subjected to taxation by the Laramie County Assessor, or other governmental official, Lessee shall pay any and all such taxes and Lessee hereby agrees to pay the same.

10. Lessee shall not use the Premises for any purpose other than those governmental purposes described herein. Lessor understands that such governmental purposes may include staff tours of the site, as needed from time to time by Lessee (DEQ) for training purposes. Lessee shall not store or use any hazardous or flammable materials on the Premises without the prior express written consent of Lessor. Lessee shall not engage in any activity on the Premises that would create unreasonable risks of harm, injury or damage to the Premises, to adjacent land owned by Lessor, or to persons who may be lawfully present on the Premises or adjacent land. Each party to this Contract shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend or indemnify the other.

11. Lessee shall not construct any permanent improvements on the Premises without the express written consent of Lessor. At the conclusion of the term of this Lease, Lessee shall surrender the Premises to Lessor in the same condition as existed upon the Effective Date of this Lease, except for ordinary wear and tear arising from Lessee's use of the Premises.

12. During the term of this Lease and for any further time that the Lessee shall hold the Premises, Lessee shall provide coverage through its commercial insurance program for personal property kept at the Premises. To the extent allowable under the Governmental Claims Act, the Lessee shall be self-insured for liability through the State Self Insurance Program (SSIP).

13. This Lease shall be governed by the laws of the State of Wyoming. Litigation relating to this Lease shall be filed in the First Judicial District Court, Laramie County,

Wyoming. Except for enforcement of the terms and conditions of this Lease, neither Party waives immunities or defenses which may be available to that Party under the Wyoming Governmental Claims Act, (Wyo. Stat. §§ 1-39-101 *et seq.*) or pursuant to other applicable law.

14. This Lease may be terminated, without cause, by the State of Wyoming upon thirty (30) days written notice. This Lease may be terminated by the State of Wyoming, without liability, in the event the Wyoming Legislature fails to appropriate the necessary funding to pay rent or to perform the Lessee's duties and obligations under this Lease. If the Lessee fails to pay rent in a timely manner or to perform any other duty or obligation, as specified herein, Lessor may terminate this Lease, without liability, upon thirty (30) days written notice to Lessee. In addition, the Lessee may terminate this Lease, without cause, and for the convenience of Lessee upon thirty (30) days written notice to Lessor, in which event, Lessor shall refund a *pro rata* portion of the last annual rent payment paid by Lessee.

15. The Parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Lease shall not be constructed so as to create such status. The rights, duties, and obligations contained in this Lease shall operate only between the Parties hereto. The provisions of this Lease are intended only to assist the Parties in providing Premises which may be used by Lessee for air quality monitoring purposes. The Parties intend that only Parties to this Lease shall have any legal or equitable rights to enforce this Lease, to seek any remedy arising out of the a Party's performance of the terms and conditions of this Lease, or to bring an action for breach of the Lease.

16. Neither Party shall have the right to assign this Lease without the express written consent of the other Party.

17. No waiver of any condition or legal right or remedy shall be implied by the failure of either Party to declare a forfeiture, or for any other reason, and no waiver of any condition or covenant shall be valid unless it be in writing signed by the Party granting or consenting to such waiver.

18. This Lease, and Attachment A, set forth all the covenants, promises, agreements, conditions and understandings between the Parties and there are no covenants, promises, agreements, conditions or understandings, either oral or written, between them other than are set forth in this Lease. Except as otherwise provided in this agreement, no subsequent alteration, amendment, change or addition to this agreement shall be binding upon the Parties unless reduced to writing and signed by them.

19. In the event that any provision or section of this Lease is rendered invalid by the decision of any court or by the enactment of any law, ordinance or regulation, such provision shall be deemed to have never been included therein and the balance shall continue in effect in accordance with its terms.

20. All notices required by this Lease shall be in writing and shall be sent by registered or certified mail, postage pre-paid, and return receipt requested, or by personal service to the Party to be notified at the addresses stated above.

21. The Parties do not waive sovereign or governmental immunity by entering into this Lease. Each of them specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. §1-39-101, *et seq.*, and all other applicable law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Lease shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.

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22. In witness hereof, the parties to this Lease through their duly authorized representatives have executed this Lease Agreement between the Wyoming Department of Environmental Quality and the City of Cheyenne on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of the Amendment as set forth herein.

This Lease is not binding on either party until approved by the Division of Procurement Services, Department of Administration & Information, and the Governor of the State of Wyoming or his designee, if required by Wyo. Stat. § 9-2-1016(b)(iv).

DEPARTMENT OF ENVIRONMENTAL QUALITY

James S. Uzzell, Administrator

Date

AIR QUALITY DIVISION

Steven A. Dietrich
Steven A. Dietrich, Administrator

6-27-13
Date

WYOMING DEPARTMENT OF ADMINISTRATION AND INFORMATION

Date

CITY OF CHEYENNE

Richard L. Kaysen, Mayor

Date

CITY ATTORNEY'S OFFICE: APPROVAL AS TO FORM

Daniel E. White
Daniel E. White, City Attorney

7/17/2013
Date

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

Marion Yoder #95174
Marion Yoder, Senior Assistant Attorney General

June 21, 2013
Date

Attachment A
Lease Agreement Between the City of Cheyenne and
The State of Wyoming, Department of Environmental Quality

